

Equivalent Citations

citation codes .

BILLU v. STATE OF HARYANA

Punjab & Haryana High Court (Feb 1, 2023)

CASE NO.

CRM-M-4324-2023

JUDGES

- Hon'ble Mr. Justice Deepak Gupta

ATTORNEY

**212 IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

CRM-M-4324 of 2023 Date of Decision:01.02.2023BilluPetitioner

Vs.

State of HaryanaRespondent

CORAM:- HON'BLE MR. JUSTICE DEEPAK GUPTA

Present:- Mr. Akshay, Advocate for the petitioner. ****

DEEPAK GUPTA, J.

By way of this petition filed under Section 439 Cr.P.C, petitioner prays for grant of regular bail in case FIR No.324 dated 26.10.2019 registered under Sections 201, 302 IPC at Police Station Kunjpura, District Karnal.

It is contended by learned counsel for the petitioner that petitioner is not named in the FIR. It is a case of blind *murder* . Petitioner is in custody for the last more than three years and, therefore, he be allowed bail.

Notice of motion.

Mr. Randhir Singh, Addl. AG, Haryana, accepts notice on behalf of the State and filed custody certificate revealing that petitioner has already undergone undertrial custody for 03 years 02 months and 16 days.

Apart from this, allegations reveal that FIR was lodged on

CRM-M-4324 of 2023 2

the statement of Seema regarding the blind *murder* of her husband Salinder. No role whatsoever of the petitioner was disclosed in the FIR. Case is dependant upon circumstantial evidence. Custody certificate also reveals that petitioner is not wanted in any other case. Having regard to the aforesaid facts and circumstances, but without commenting anything on the merits of the case, petition is allowed and the petitioner is admitted to bail, on his furnishing personal bail bonds and surety bonds to the satisfaction of learned Chief Judicial Magistrate/ Duty Magistrate concerned.

February 01, 2023 (DEEPAK GUPTA)renu JUDGE

Whether Speaking/reasoned Yes/No Whether Reportable Yes/No

2 of 2